

Hindu Succession Act, 1956

Authority: Ministry of Law and Justice, Government of India

Year: 1956

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Section 6. Devolution of interest in coparcenary property & equal daughter rights

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(1) On and from the commencement of the Hindu Succession (Amendment) Act, 2005, in a Joint Hindu family governed by the Mitakshara law, the daughter of a coparcener shall:

- (a) by birth become a coparcener in her own right in the same manner as the son;
- (b) have the same rights in the coparcenary property as she would have had if she had been a son;
- (c) be subject to the same liabilities in respect of the said coparcenary property as that of a son.

Daughters have absolute and equal coparcenary rights in ancestral properties by birth.

Section 8. General rules of succession in the case of males

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The property of a male Hindu dying intestate shall devolve according to the provisions of this Chapter:

- (a) firstly, upon the heirs, being the relatives specified in Class I of the Schedule (Son, Daughter, Widow, Mother, Son of a pre-deceased son, Daughter of a pre-deceased son, Widow of a pre-deceased son);
- (b) secondly, if there is no heir of Class I, then upon the heirs specified in Class II;
- (c) thirdly, upon agnates;
- (d) lastly, upon cognates.